IN THE NATIONAL COMPANY LAW TRIBUNAL,
NEW DELHI COURT III

Item No. 01
CA.CAA-24(ND)/2023

IN THE MATTER OF:
Primesoft Vincom Pvt Ltd. AND Gadaadh Sales Pvt Ltd.

.....APPLICANT/PETITIONER

SECTION
U/s 230/232

Order Pronounced on 12.07.2023

CORAM:
SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant :
For the Respondent :

ORDER

Order pronounced in open court vide separate sheets. CA.CAA-24(ND)/2023 is **allowed.**

Sd/-

(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

Sd/-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

BEFORE THE NATIONAL COMPANY LAW TRIBUNAL
COURT NO. III, NEW DELHI

CA (CAA)- 24/(ND)/2023

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

In the matter of Scheme of Amalgamation

PRIMESOFT VINCOM PRIVATE LIMITED

(Applicant Company-1 /Transferor Company-1)

AND

GADAADHARAH SALES PRIVATE LIMITED

(Applicant Company-2/Transferor Company-2)

WITH

ANGAN COMMERCE PRIVATE LIMITED

(Applicant Company-3/Transferee Company-3)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

CORAM:

SH. BACHU VENKAT BALRAM DAS, HON'BLE MEMBER (JUDICIAL)

SH. ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

1. M/S PRIMESOFT VINCOM PRIVATE LIMITED

Company registered under the Companies Act, 1956, having its Registered Office at**:**
304, 3rd floor, Bhanot Corner,
Pamposh Enclave, Greater Kailash-I
New Delhi South Delhi-110048

...Transferor Company-1/Applicant Company-1

AND

2. M/S GADAADHARAH SALES PRIVATE LIMITED

Company registered under the Companies Act, 1956, having its Registered Office at**:**
304, 3rd Floor, Bhanot Corner,
Pamposh Enclave, Greater Kailash- I
New Delhi South Delhi-110048

...Transferor Company-2/Applicant Company-2

WITH

3. M/S ANGAN COMMERCE PRIVATE LIMITED
Company registered under the Companies Act, 1956, having its Registered Office at**:**
304, 3rd Floor, Bhanot Corner,
Pamposh Enclave, Greater Kailash- I
New Delhi South Delhi-110048

...Transferee Company-3/Applicant Company-3

Order Delivered on: 12.07.2023

O R D E R

Per- Atul Chaturvedi, Member (Technical)

1. This application (CA (CAA)-24(ND)/2023) have been jointly filed by the applicant companies herein, Primesoft Vincom Private Limited ("Transferor Company-1") and Gadaadharah Sales Private Limited ("Transferor Company-2") and Angan Commerce Private Limited ("Transferee Company-3")under section 230-232 of Companies Act, 1956, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed between the applicants.

2. Affidavits in support of the above applications have been sworn by Mr. Satyendra Nath Singh, Director of Transferor Company No. 1 and Transferor Company No.2, Mr.Dwijendra Kumar Varshney, Director of Transferee Company No.3 being the authorized signatory of the Applicant Companies, who have been authorized vide board resolutions dated 20.03.2023 for all the Applicant Companies and have been duly filed, along with the application.

3. The Applicant Company No. 1/Transferor Company-M/s Primesoft Private Limited bearing Corporate Identification No(CIN): U51909DL2010PTC337626 was incorporated under the provisions of the Companies Act, 1956, as a private limited company vide Certificate of Incorporation dated 28th May 2010, having its registered office at 304, 3rd Floor, Bhanot Corner, Pamposh Enclave, Greater Kailash-I, New Delhi South Delhi- 110048. The Authorized Share Capital of the Applicant Company No. 1 is Rs. 2,00,000/- (Rupees Two Lakhs Only) divided into 20,000 (Twenty Thousand) equity shares of Rs. 10/- (Rupees Ten) each. The Issued, Subscribed and Paid-up Share Capital of the Company is Rs. 1,00,000/- (Rupees One Lakh Only) divided into 10,000 (Ten Thousand) equity shares of Rs. 10/- (Rupees Ten) each, fully paid-up.

4. The Applicant Company No. 2/Transferor Company – M/s Gadaadharah Sales Private Limited bearing Corporate Identification No. (CIN): U52100DL2010PTC337625 was incorporated under the provisions of the Companies Act, 1956, as a private limited company vide Certificate of Incorporation dated 13th May 2010, having its registered office at 304, 3rd Floor, Bhanot Corner, Pamposh Enclave, Greater Kailash-I, New Delhi South Delhi- 110048. The Authorized Share Capital of the Applicant Company No. 2 is Rs. 2,00,000/- (Rupees Two Lakhs Only) divided into 20,000 (Twenty Thousand) equity shares of Rs. 10/- (Rupees Ten) each. The Issued, Subscribed and Paid-up Share Capital of the Company is Rs. 1,00,000/- (Rupees One Lakh Only) divided into 10,000 (Ten Thousand) equity shares of Rs. 10/- (Rupees Ten) each, fully paid-up.

5. The Applicant Company No. 3/Transferee Company – M/s Angan Commerce Private Limited bearing Corporate Identification No. (CIN): U51109DL007PTC333225 was incorporated under the provisions of the Companies Act, 1956, as a private limited company vide Certificate of Incorporation dated 11th October 2007, having its registered office at 304, 3rd Floor, Bhanot Corner, Pamposh Enclave, Greater Kailash-I, New Delhi South Delhi- 110048. The Authorized Share Capital of the Applicant Company No. 3 is Rs. 47,00,000/- (Rupees Forty-Seven Lakhs Only) divided into 4,70,000 (Four Lakhs Seventy Thousand) Equity Share of Rs. 10 each. The Issued, Subscribed and Paid-up Share Capital of the Company is Rs. 46,80,000/- (Rupees Forty-Six Lakhs Eighty Thousand Only) divided into 4,68,000 (Four Lakhs Sixty-Eight Thousand) equity shares of Rs. 10/- (Rupees Ten) each, fully paid-up.

6. The Transferor Company as well as the Transferee Company have filed their respective Memorandum and Articles of Association inter alia delineating

their object clauses, as well as their last Audited Annual Accounts as on 31.03.2022.

7. The Transferor Company and Transferee Company, vide their respective meeting of the Board of Directors held on 1st March 2023 have unanimously approved the proposed Scheme of Amalgamation.

8. The applicant companies have submitted as under: -

Company	No. of Equity Shareholder		Written consent by way of Affidavit/Resolution		Percentage of consent received (in terms of value)
	Total No. of Equity Shares holder (in number)	Total Amount (in value in Rs.)	Total No. of Equity Shares holder (in number)	Total Amount (in value)	
Transferor/ Applicant Company-1	2	1,00,000	2	1,00,000	100%
Transferor/ Applicant Company-II	2	1,00,000	2	1,00,000	100%
Transferee Applicant/	3	46,80,000	3	46,80,000	100%

Company-III					

9. It has been stated that the Transferor Companies and the Transferee Company had some 'Statutory and Other dues' which have either been paid in full or being provisional in nature, are not due for payment as on the date of this Application. Certificates from Chartered Accountants confirming same has been enclosed.

10. It is pertinent to note that the consent affidavits obtained are more than the requisite statutory majority of 100% of total value required to approve the Scheme of Amalgamation in terms of the provisions of Section 230(9) of the Companies Act, 2013.

11. The Applicant Companies have further placed on record the certificate of statutory auditors regarding conformity of accounting treatment in the scheme is in consonance with Section 133 of the Companies Act, 2013.

12. The management wishes to amalgamate the Transferor Companies with the Transferee Company for following benefits: -

    i) This Scheme of Amalgamation has been envisaged to create a single robust entity which would result in strengthened leadership in the industry in terms of asset base, revenue and market share of the combined entity. The combined entity will have the ability to leverage on its large asset base and vast pool of intellectual capital. It will have better net worth and borrowing capacity to expand its business at a faster rate.

ii) The consolidation of resources of the Transferor Companies and the Transferee Company by way of amalgamation will lead to a more efficient utilization of capital, superior deployment of brand promotion, sales and strategies and create a consolidated and diversified base for future growth of the amalgamated entity with a wider presence in the market. The amalgamation will result in administrative and operational rationalization and promote organizational efficiencies. Further, it would result in the elimination of the investment structure layer, enhancement of shareholder value and operational efficiencies, the benefit of scaling up, and greater focus and would enable the management to vigorously pursue revenue growth and expansion opportunities. It will also prevent cost duplication that can erode financial efficiencies of the holding structure and the resultant operations will be more cost-efficient with the achievement of greater economies of scale, reduction in overheads, and improvement in various other operating parameters.

iii) The amalgamation will enable the companies to have better, more efficient, and economical management, achieve cost savings, pooling of resources, reduction of corporate tiers, and rationalization administrative expenses/services, the management want to merge Transferor Companies with Transferee Company.

iv) The consolidation of activities of the Transferor Companies with the Transferee Company by way of an amalgamation will lead to operational synergies, greater efficiency and economical operations for future growth of the Transferee Company.

v) The amalgamation would result in greater integration and greater financial strength and flexibility for the amalgamated entity, which would result in maximizing overall shareholder value, and will improve the competitive position of the combined entity.

vi) The amalgamation will provide for pooling of the managerial, technical and financial resources of the Transferor Companies and the Transferee Company which will help in increasing the competitiveness of the Transferee Company.

vii) The amalgamation would result in greater efficiency in cash management of the amalgamated entity, and unfettered access to cash flow generated by the combined business, which can be deployed more efficiently to fund growth opportunities, to maximize shareholder value.

13. Taking into consideration the submissions and the documents filed therewith, the following directions are issued forthwith in respect of convening/holding or dispensing with the meetings of the Shareholders, Secured and Unsecured Creditors as well as issue of notices as follows:

I. <u>In relation to the Transferor Company-1: (M/S PRIMESOFT PRIVATE LIMITED)</u>

a) With respect to Equity shareholders: In view of consent affidavits from 2 equity shareholders, having 100% of voting share, convening the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors:** There are no Secured Creditors of the Transferor Company No.1. Therefore, there is no requirement for the meeting of Secured Creditors of Transferor Company No.1.

c) **With respect to Unsecured Creditors:** In view of consent affidavits from 1 Unsecured Creditor, having 100% of voting share, convening the meeting of Unsecured Creditor is dispensed with.

II. <u>In relation to the Transferor Company-2:(M/S GADAAADHARAH PRIVATE LIMITED)</u>

a) **With respect to Equity shareholders:** In view of consent affidavits from 2 equity shareholders, having 100% voting share, convening the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors:** There are no Secured Creditors of the Transferor Company No.2. Therefore, there is no requirement for the meeting of Secured Creditors of Transferor Company No.2.

d) **With respect to Unsecured Creditors:** In view of consent affidavits from 1 Unsecured Creditor, having 100% of voting share, convening the meeting of Unsecured Creditor is dispensed with.

III. <u>In relation to the Transferee Company-3:(M/S ANGAN COMMERCE PRIVATE LIMITED)</u>

a) **With respect to Equity shareholders:** In view of consent affidavits from 3 equity shareholders, having 100% voting share, convening the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors:** There are no Secured Creditors of the Transferee Company No.3. Therefore, there is no requirement for the meeting of Secured Creditors of Transferee Company No.3.

e) **With respect to Unsecured Creditors:** In view of consent affidavits from 1 Unsecured Creditor, having 100% of voting share, convening the meeting of Secured Creditor is dispensed with.

14. Notice of this application shall be served on the following:

i. Regional Director, Ministry of Corporate Affairs, B-2 Wing, 2 Floor, Paryawaran Bhavan, CGO Complex, New Delhi-110003;

ii. Registrar of Companies at 4th floor, IFCI Tower, 61, Nehru Place, New Delhi-110019;

iii. Official liquidator, Lok Nayak Bhavan, 8th Floor, Khan Market, New Delhi-110001;

iv. Income Tax Department, Income Tax Office, Additional Commissioner of Income Tax, Special Range 4, Central Revenue Building, IP Estate, New Delhi-110002. The notices to Income Tax Authorities shall disclose sufficient details like PAN, ward numbers and assessing officers so that timely and proper reply may be filed.

v. Any other sectoral regulators required to be served.

The application **CA (CAA)- 24/(ND)/2023** stands allowed on the aforesaid term and accordingly disposed of.

Sd/- **Sd/-**

(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

(BACHU VENKAT BALRAM DAS)
MEMBER (JUDICIAL)